

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JUNE 4, 2026, AT 8:30 A.M.

burden—which he did not—defendant thereafter meets its burden to show, through the declaration of Joe Little and the exhibits attached thereto, the requested costs were incurred, reasonably necessary to the litigation, and reasonable in amount. (Code Civ. Proc., § 1033.5, subd. (c).)

Accordingly, plaintiff’s motion is denied in its entirety.

7. S-CV-0052150 ZOLLER, KATHIE v. DONALD RYAN AND CAROLYN

Defendants’ Motion for Summary Adjudication on the Second Cause of Action for Intentional Infliction of Emotional Distress and on the Claim for Punitive Damages

Appearances of the parties are required at the hearing.

8. S-CV-0053126 HUSSAIN, SYED v. RAMIREZ, ISIDRO

Plaintiff’s Motion for Leave to Amend Complaint to Allow Claim for Punitive Damages

Plaintiff moves for leave from the court to amend his complaint to include a prayer for punitive damages.

The court notes the motion is procedurally deficient because it does not comply with California Rules of Court, Rule 3.1324, subdivision (a) by identifying what allegations are to be deleted and what allegations are to be added. This is especially problematic here because plaintiff moves to add a prayer for punitive damages yet the proposed second amended complaint is 3 pages longer than the operative first amended complaint. The court nonetheless addresses the merits of plaintiff’s motion.

Punitive damages are available “where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice.” (Civ. Code § 3294, subd. (a).) Malice is “conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (*Id.* at § 3294, subd. (c)(1).) Oppression is “despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” (*Id.* at § 3294, subd. (c)(2).)

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Corporate employers can be held liable for punitive damages based on the acts of the employee when “the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.” (*Id.* at § 3294, subd. (b).)

Courts may deny leave to amend “where permitting an amendment would be futile. . . .” (*Singh v. Lipworth* (2014) 227 Cal.App.4th 813, 828.)

Here, plaintiff’s motion is denied because the amendments would be futile in light of the insufficient pleadings that defendants acted with oppression, fraud, or malice, or that defendant Pacific Power Renewables, Inc. employed defendant Isidro Juan Ramirez “with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice.” The court observes there are several conclusions that defendant Isidro Juan Ramirez’s license was suspended but no allegations surrounding why his license was suspended. This is problematic because there are a wide range of possible reasons for an individual’s license to be suspended, some of which involve monetary reasons and others are driving related. As pleaded, there is no causal link between defendant Isidro Juan Ramirez’s suspended license and any alleged actions of oppression, fraud, or malice.

Accordingly, plaintiff’s motion is denied.

Defendants Isidro Juan Ramirez, David Warren Dwelle, and Pacific Power Renewables, Inc.’s Motion to Compel Neuropsychological Independent Examination of Plaintiff Syed Mustafa Hussain

Defendants move for a court order permitting a neuropsychological independent medical examination of plaintiff pursuant to Code of Civil Procedure sections 2032.310 and 2032.320. The court finds good cause exists for the examination. However, the court also determines there is no good cause for the exam to be conducted more than 75 miles from plaintiff’s residence in Yorba Linda.

The court sets an order to show cause re: examination for June 25, 2026, at 8:30 a.m. in Department 3. The parties shall meet and confer in good faith, which includes acting within the spirit and meaning of the California Attorney Guidelines of Civility

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and Professionalism, to select a mutually agreed upon doctor to conduct the exam, exam location, which specific tests are to be conducted (*Carpenter v. Superior Court* (2006) 141 Cal.App.4th 249, 269), the exam procedures, whether or not plaintiff will be entitled to the audio-taped testing portion of the exam, and whether the parties will stipulate to a protective order for the audio-taped testing portion of the exam.

On or before June 18, 2026, the parties shall file a joint declaration detailing their meet and confer efforts and whether they have mutually agreed upon the above matters. If the parties timely file a joint declaration that indicates the above matters have been resolved, then the June 25, 2026, hearing shall be dropped. If the parties cannot agree on the above matters, then each party shall submit 2 doctors and a list of their proposed specific tests for the court to decide at the June 25, 2026, hearing. Personal appearances shall be required at the June 25, 2026, hearing.

9. S-CV-0053774 LAFAYETTE FEDERAL CREDIT v. JOYNER, JOHN

Plaintiff's Motion to Enter Judgment Pursuant to CCP § 664.6

Plaintiff's unopposed motion is granted. (Code Civ. Proc., § 664.6.) The dismissal entered by the court on March 28, 2025, is vacated. Judgment shall be entered in favor of plaintiff and against defendant in the amount of \$40,419.71, plus court costs in the amount of \$508.55, for a total judgment entered of \$41,953.26.

10. S-CV-0053914 GERVIN, DONALD v. GROSS, RICKY
S-CV-0055243 GROSS, RICKEY V. GERVIN, DONALD

Defendant Rickey Glenn Gross's Motion to Consolidate Actions

Defendant's motion to consolidate actions is dropped from calendar in light of the parties' stipulated stay granted by the court on January 14, 2025.

Plaintiff Rickey Glenn Gross's Motion to Consolidate Actions

Plaintiff's motion is denied without prejudice. The court declines to consolidate a stayed case with a non-stayed case. (Code Civ. Proc., § 1048.)

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